

# Rights & the Non-Derogable Floor

## The Six Absolute Rights - §1.19.a

§1.3

No Torture

Torture and cruel treatment, prohibited without exception.

§1.4

No Slavery

Slavery and forced labor, prohibited without exception.

§1.11

Habeas Corpus

The right to challenge detention before a court - never suspended.

§1.13

Public Trial

No secret proceedings, even under emergency.

§1.14

No Retroactive Punishment

No one is punished under a law written after the act.

§1.21

Non-Refoulement

No return of a person to persecution or torture.

No emergency declaration, executive order, or legislative act may derogate any of these - and no emergency measure may discriminate by race, ethnicity, religion, or national origin, whatever its stated purpose.

## Official Capacity Protection - §7.7

Official Capacity Protection

Constitutional officers and persons acting within the authority of a constitutional office are protected from civil proceedings arising from official acts. This protection does not extend to criminal conduct, acts outside official capacity, or acts that violate this constitution. Legal remedies otherwise available under the constitution or statute are unaffected.

## The Floor Beneath Everything - §1.2, §1.19

The Sovereignty Floor

Every person holds an inviolable sphere over their own life, body, and choices, within which government authority does not reach. Where the boundary is disputed, the presumption runs in favor of liberty - government carries the burden of proving it has constitutional authority to limit, not the person the burden of justifying freedom.

What an Emergency Cannot Do

No emergency suspends the Floor in full. The three Monitors keep full authority throughout - they cannot be suspended or reduced by declaration. Every derogation must name the emergency, the specific rights limited, the geographic scope, and the duration; blanket declarations are constitutionally invalid, and every one is published to the NRS immediately.

## Why No Emergency Becomes Permanent - §1.19.b

### DEFAULT

#### Automatic Lapse

Emergency measures expire on their own at the declaration's end. Doing nothing ends the emergency.

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### NO EXTENSION

#### Ever

No Declaration - executive or statutory - may be extended. Every Declaration expires strictly on the terms stated at its own issuance.

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### COOLDOWN

#### 60-Day Bar

No re-declaration within 60 days - a new emergency covering substantially the same scope and rights is barred no matter how it's relabeled, EM assessment within 14 days. After 60 days, a new declaration covering the same ground still requires 2/3 of both chambers certifying continued necessity.

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### ALWAYS

#### Courts Stay Open

Any citizen may seek judicial review of any emergency measure at any time; courts may strike a measure down mid-emergency. Nothing is made permanent except by ordinary law.

## Numbers Worth Remembering

6

rights are absolute - no emergency, order, or statute can touch them.

60

days - the re-declaration cooldown that blocks relabeled continuations, not an extension window; no Declaration is ever extended.

14

days for the EM's relabeling assessment of any new declaration following an expired one.

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emergency measures can be made permanent without re-enactment through ordinary law.